

25NNCV07725 25NNCV07725

County: los-angeles

Division: Civil Law and Motion

Department: P

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[TENTATIVE] ORDER GRANTING DEFENDANT'S
MOTION TO QUASH

I. INTRODUCTION

Plaintiff

Steven Bryan ("Plaintiff"), in pro per, filed this action, captioned "Insurance Settlement," against Defendant GEICO CT Corporation Systems ("Defendant") on October 30, 2025. The action arises from an alleged incident on June 3, 2025, in which debris from a moving trash truck allegedly fell in front of Plaintiff's vehicle, causing damage that Plaintiff contends resulted in a total loss.

On June 25, 2026, the Court sustained Defendant's demurrer to the First Amended Complaint with 20 days' leave to amend. On July 13, 2026, Plaintiff filed the Second Amended Complaint ("SAC").

On August 17, 2026, Defendant filed the instant motion to quash service of the SAC. No opposition has been filed.

II. LEGAL STANDARD

California Rules of Court, rule

1.21(a) provides: "Whenever a document is required to be served on a party, the service must be made on the party's attorney if the party is represented."

Similarly, Code of Civil Procedure

section 1015 provides that “in all cases where a party has an attorney in the action or proceeding, the service of papers, when required, must be upon the attorney instead of the party,” except for subpoenas, writs, other process issued in the action, and papers seeking to bring the party into contempt. (Code Civ. Proc., § 1015.)

III. ANALYSIS

Defendant

moves to quash service of the SAC on the ground that Plaintiff improperly served the SAC directly on Defendant rather than Defendant's counsel of record. Defense counsel thereafter contacted Plaintiff by telephone and email and requested that Plaintiff serve the SAC on counsel, but Plaintiff did not respond. (Boon Decl., ¶ 6.)

Under California Rules of Court, rule 1.21 and Code of Civil Procedure section 1015, where a party is represented by counsel, service of papers required to be served must be made on the party's attorney rather than directly on the party. Here, because Defendant had already appeared through counsel when filing the demurrer for the FAC, Plaintiff was required to serve Defendant's counsel of record. Plaintiff's direct service on Defendant was therefore improper. This motion is unopposed.

Thus, the Court GRANTS Defendant's motion to quash the SAC.

IV. ORDER

The Court

GRANTS Defendant's motion to quash the SAC.

Defendant is to give notice.

Dated: September 16, 2026

JARED

D. MOSES

JUDGE OF THE SUPERIOR COURT